

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN.
JUDICIAL DEPARTMENT

W.P. No. 13253 of 2014.

The Punjab Vocational
Training Council etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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29.07.2015. Mr. Muhammad Ameen Malik, Advocate for the petitioner.
Syed Ahmed Ali Bukhari, Advocate for the respondents.

Brief facts for disposal of the instant writ petition are that petitioner was appointed as Admission and Placement Officer vide Appointment Order dated 07.07.2005. He was promoted as Principal and posted at Vocational Training Institute Kot Mithan vide order dated 04.03.2011 issued by respondent No. 2. Subsequently, on the basis of a special audit, respondent No. 2 issued a charge sheet against the petitioner on 22.02.2013 and appointed Mr. Ibrar Hussain, Area Manager, Vehari as inquiry officer and Mr. Tariq Baig, Area Manager D. G. Khan as departmental representative. The petitioner submitted reply to the charge sheet by controverting the allegations leveled against him. The inquiry officer, after conducting inquiry, reported that charges were partially proved against the petitioner, and recommended as under:-

“As the charges of corruption & misconduct stand proved so the major penalties of “Recovery of Rs.108,536/-” under section 4 (b) (i) and “Reduction to a lower post and pay scale from the current post for a period of two years” under section 4 (b) (ii) of PEEDA Act 2006 are recommended.”

The petitioner was summoned for personal hearing by respondent No. 3 and major penalty of removal from service

and recovery of Rs.108,576/- was imposed vide order dated 21.10.2013. Feeling aggrieved by the said order, petitioner preferred an appeal before respondent No 2 under section 16 of the PEEDA Act, 2006, which was also rejected vide order dated 02.01.2014. In the first instance, petitioner assailed the aforesaid orders before the Punjab Service Tribunal, Lahore through an appeal under section 19 of the PEEDA Act, 2006, but the same was not entertained for want of jurisdiction in view of law laid down by the Hon'ble Supreme Court of Pakistan in case titled "Executive Council Allama Iqbal Open University Islamabad through Chairman and others v. M. Tufail Hashmi" (2010 SCMR 1484). Consequently, the petitioner preferred the instant writ petition with the following prayer:-

"In view of the above submissions, it is respectfully prayed that above titled writ petition may very kindly be accepted, impugned order dated 21-10-2013 and 02-01-2014 may graciously be declared abinitio void, illegal, without lawful authority and jurisdiction, against the provisions of law applicable thereto, also against the record of the VTI Kot Mithan, based on malafide and against the service rights of the Petitioner, hence same may be set aside and Petitioner may be reinstated into service with all back benefits.

It is further prayed that meanwhile, operation of the impugned orders dated 21-10-2013 and 02-01-2014 may kindly be suspended till final decision of above titled petition."

2. Learned counsel for the petitioner submits that appointing authority of petitioner was respondent No. 2, as such all the disciplinary proceedings and final penal order should have been passed by the respondent No. 2 being competent authority but, contrary to it, the disciplinary proceedings under PEEDA Act, 2006 were initiated by respondent No. 3, who was not competent authority to do so, hence, all the aforesaid penal proceedings and orders are without jurisdiction and lawful authority. Further submits

that the allegation of misappropriation of the amount of Rs.88,906/- on account of payment of electricity bills and embezzlement of binding machine worth Rs.11,100/- have not been proved on record, therefore, removal of petitioner from service is without any evidence. He also placed reliance upon case titled “Muslim Commercial Bank Ltd. v. Mahmood Ahmad Butt etc.” (PLJ 1997 SC 967), in support of his contentions.

3. On the other hand, learned counsel for the respondents defended the impugned orders for dismissal of petitioner from service on the ground that the same have been passed perfectly in accordance with law and the petitioner has failed to point out any illegality and legal infirmity in the aforesaid orders.

4. Arguments heard. Record perused.

5. It is evident from record that the inquiry officer, after recording the statements of prosecution witnesses as well as that of defence witnesses, submitted his report dated 23.07.2013 and recommended as under:

- (i) “major penalties of ‘Recovery of Rs.108,536/-’ under section 4 (b) (i) and,
- (ii) “Reduction to a lower post and pay scale from the current post for a period of two years under section 4 (b) (ii) of PEEDA Act 2006” be imposed on the petitioner.

The competent authority, instead of awarding the recommended penalty, proceeded to observe that the charges of corruption and misconduct leveled against the petitioner stood proved and consequently, imposed major penalties of recovery of embezzled amount of Rs.108,536/- and removal from service, as prescribed under section 4 (1) (b) [(i) & (v)] of PEEDA Act, 2006.

6. There is no cavil to the proposition that the Competent Authority is not bound by the recommendation

of Inquiry Officer qua the award of penalty to the accused officer. However, if the Competent Authority was not inclined to agree with the recommendations of the Inquiry Officer, he has to firstly give notice to the accused officer and secondly, he has to pass a reasoned order for disagreeing with the recommendations of the Inquiry Officer and for enhancement of punishment, with conscious application of mind. The tenor of the order passed, to which reference has been made above, indicates that although the Inquiry Officer had found the petitioner guilty and proposed penalties mentioned above, yet the Competent Authority while awarding him major penalty of dismissal from service has held that charges of corruption and misconduct stood against the petitioner.

7. The perusal of order passed by the Competent Authority reveals that there is no specific reference to the evidence or material which found favour with the Authority to award major penalty of dismissal from service. Thus, the major penalty of dismissal from service does not appear to be in conformity with law. Reference can be made to cases titled “Asif Yousaf v. Secretary Revenue Division, CBR Islamabad and another” (2014 SCMR 147), “Secretary, Government of Punjab and others v. Khalid Hussain Hamdani and 2 others” (2013 SCMR 187) and “Shibli Farooqui v. Federation of Pakistan” (2009 SCMR 281).

8. In Shibli Farooqui’s case supra, seven out of ten charges stood proved against the accused official but keeping in view the nature of the charges framed against him, the Authorized Officer proposed the penalty of reduction of pay by two stages in the timescale for a period of two years. The Competent Authority, however, disagreed and imposed major penalty of dismissal from service. The Court set aside the said order and remanded the case to the said authority to pass a fresh order by observing as under:-

"12. Nevertheless, the "authority" without taking into consideration the recommendations of the Authorized Officer of the status of the Auditor-General of Pakistan completely overlooked his recommendations and went on to impose an extremely harsh penalty of removal from service. Mr. M.M. Aqil Awan, learned counsel for the appellant relied upon, the judgment of this Court in the case of Chief Director Central Directorate of National Savings v. Rahat Ali reported in 1996 SCMR 248 wherein it was held that if the authority was not inclined to agree with the findings of the Authorized Officer it was required to record proper reason for doing so after notice to the affected civil servant. It was further observed that public power could not be exercised arbitrarily or capriciously. No reasons have been recorded by the "authority".

9. In Khalid Hussain's case supra, Hon'ble Supreme Court of Pakistan observed as under:-

"10. The Competent Authority, it appears, neither examined the evidence recorded during inquiry nor appreciated the findings given by the Inquiry Officer and proceeded to enhance the penalty by converting the same into major penalty of dismissal from service and the recovery from Rs. 2.76 million as determined by the Inquiry Officer after the submission of inquiry report and issuance of show cause notices to the respondent officers. If he was of the view that the finding of the Inquiry Officer qua the quantum of excess payment was factually incorrect, he could have directed de novo inquiry or could have confronted the respondent officers with the report of the Chief Engineer. He even did not specifically disagree with the findings of the Inquiry Officer with regard to the nature of the misconduct conducted by the respondent officers which persuaded the latter to recommend minor penalties. The authority enhanced the penalty merely on the basis of Chief Engineer's report that the excess payment made was more than what was calculated by the Inquiry Officer. There is no cavil to the proposition that the act of carelessness on the part of a civil servant could be a valid ground to award penalty. Elements of bad faith and willfulness may bring the act of negligence within the mischief of 'misconduct' but a conduct demonstrating lack of proper care and the requisite vigilance may not

always be willful amounting to grave negligence to warrant harsh punishment.”

10. In view of the aforesaid, the impugned orders imposing major penalty of dismissal from service did not appear to be in conformity with the evidence brought on record. Thus, it is deemed appropriate that respondent No.2 should re-consider the matter and decide it afresh keeping in view the entire evidence available on record and after affording opportunity of personal hearing to the petitioner, strictly in accordance with law, within thirty days from the date of receipt of this order, under intimation to the Deputy Registrar (Judicial) of this Court.

11. With the above observations, the instant petition is hereby disposed of.

(Muhammad Sajid Mehmood Sethi)
Judge

Mian Farrukh